

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index #:
Date Purchased:

-----x

JOSE ESCALONA-MARTINEZ,
Plaintiff,

Plaintiff designates
NEW YORK County as
Place of Trial
Basis of venue is:
Place of Occurrence

-against-

SUMMONS

THE CITY OF NEW YORK, and NYC POLICE
OFFICER ALI HUSSAIN,

Plaintiff's Residence:
558 W. 164th Street
New York, NY 10032

Defendants.

-----x

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: December 6, 2023

DAVID HOROWITZ, P.C.

By: Joanna Plonska

Joanna Plonska

171 Madison Avenue, 1300
New York, New York 10016
(212) 684-3630

Defendants' Addresses:

CITY: 100 Church Street, New York, New York 10007
NYC P.O. ALI HUSSAIN: Address Unknown

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JOSE ESCALONA-MARTINEZ,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, and NYC POLICE
OFFICER ALI HUSSAIN,

Defendants.

-----X

Plaintiff, JOSE ESCALONA-MARTINEZ, by his attorney,
DAVID HOROWITZ, P.C., complaining of the defendants, alleges upon
information and belief as follows:

1. That at all times hereinafter mentioned, the
defendant THE CITY OF NEW YORK was and still is a domestic
municipal corporation, duly organized and existing under and by
virtue of the laws of the State of New York.

2. That at all times hereinafter mentioned, Police
Officer Ali Hussain was employed by the New York City Police
Department, a division of the defendant THE CITY OF NEW YORK;

3. That at all times hereinafter mentioned, Police
Officer Ali Hussain was employed by the defendant the CITY OF NEW
YORK.

4. That at all times hereinafter mentioned, Police
Officer Ali Hussain was acting in the course of his employment and
further of the business of the New York City Police Department, a

division of the City of New York.

5. That at all times hereinafter mentioned, Police Officer Ali Hussain was acting in the course of his employment and further of the business of the defendant THE CITY OF NEW YORK.

6. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK employed Police Officer Ali Hussain.

7. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK hired Police Officer Ali Hussain.

8. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK trained Police Officer Ali Hussain.

9. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK supervised Police Officer Ali Hussain.

10. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK directed Police Officer Ali Hussain.

11. That at all times hereinafter mentioned, defendant the CITY OF NEW YORK controlled Police Officer Ali Hussain.

12. That on the 22nd day of November 2022, a notice of claim was duly served upon the defendant THE CITY OF NEW YORK.

13. That said notice of claim was duly served upon the defendant THE CITY OF NEW YORK within 90 days after the said cause of action of the plaintiff accrued.

14. That more than thirty days have elapsed since the service of the said notice of claim upon the defendant THE CITY OF

NEW YORK.

15. That the defendant THE CITY OF NEW YORK and its comptroller have failed, neglected, and refused to pay, settle, compromise or adjust the claim of the plaintiff herein.

16. That a 50(h) hearing was held on February 16, 2023.

17. That this action has been commenced within one year and ninety days after the cause of action of plaintiff accrued.

18. That plaintiff has duly complied with all of the conditions precedent to the commencement of this action.

19. That on September 30, 2022, at approximately 4:28 P.M., as plaintiff was dressed in an Ironman costume, and was lawfully standing within a designated activity zone and public area in the Times Square Area at or near West 43rd Street and Broadway, New York, New York, and conducting designated lawful activity, he was then approached by Police Officer Ali Hussain, and without reason or probable cause was improperly and illegally stopped and detained for approximately 30 minutes and improperly issued a desk appearance ticket to plaintiff to appear in Criminal Court of The City of New York, County of New York on October 20, 2022 without probable cause, reasonable suspicion or reason. Plaintiff did not commit a crime nor violate a rule, law, or statute and or Times Square Designation Zone rule. There was no warrant for the plaintiff's arrest. The desk appearance ticket was

dismissed (see attached Exhibit A).

20. Plaintiff was falsely detained, falsely arrested, falsely imprisoned, retaliated against, issued a desk appearance ticket, and maliciously prosecuted all due to the negligence and recklessness of the defendant THE CITY OF NEW YORK, and Police Officer Ali Hussain, all to plaintiff's damage and deprivation of freedom and deprivation of his civil rights.

21. That upon information and belief, and more particularly on September 30, 2022, and continuing thereafter, defendant THE CITY OF NEW YORK by and its agents, servants, employees, and defendant Police Officer Ali Hussain, acting in the scope of his employment and in the furtherance of the business of the defendant THE CITY OF NEW YORK, without probable cause, without reason, without justification, provocation, and with malice, improperly and illegally stopped and frisked plaintiff, falsely detained, falsely arrested, falsely imprisoned, falsely issued a desk appearance ticket and maliciously prosecuted and retaliated against plaintiff JOSE ESCALONA-MARTINEZ.

22. At the time of said false detainment and false arrest, plaintiff JOSE ESCALONA-MARTINEZ had committed no illegal act and the defendant and its agents, servants, employees, and police officers had no probable cause or reasonable belief that the plaintiff had committed an illegal act.

23. That the said Police Officer Ali Hussain falsely detained, falsely arrested, falsely imprisoned, falsely issued a desk appearance ticket and maliciously prosecuted the plaintiff, while employed by the New York City Police Department and acting as agent, employee and/or servant of the defendant CITY OF NEW YORK, and otherwise while acting on behalf of the defendant the City of New York.

24. That the said Police Officer Ali Hussain, while acting in the course of his employment for the defendant THE CITY OF NEW YORK, and following the City of New York's improper training and custom and practice that discriminates and targets Times Square street performers including plaintiff, the defendant CITY OF NEW YORK and its officers, agents, employees and servants falsely detained, falsely arrested, falsely imprisoned, falsely issued a desk appearance ticket and maliciously prosecuted the plaintiff, while acting as agents, employees and/or servants of the defendant CITY OF NEW YORK, and otherwise while acting on behalf of the defendant the City of New York.

25. That the defendant THE CITY OF NEW YORK, through its police officers, has a custom and practice of retaliating, discriminating and harassing victims that file formal complaints against police. That the defendant THE CITY OF NEW YORK, through its police officers, has a custom and practice of retaliating,

discriminating and harassing Times Square Costume Performers such as plaintiff.

26. That the defendant THE CITY OF NEW YORK, through its police officers, including Police Officer Ali Hussain acted intentionally, willfully, knowingly, and maliciously in bringing about the false detainment, false arrest, false imprisonment, and malicious prosecution of plaintiff.

27. That the defendant, THE CITY OF NEW YORK, was negligent in its hiring and training practices of its police officers including Police Officer Ali Hussain; in that it retained officers not fit by temperament or personality to be officers; in failing to fire officers not fit for their position; in failing to instruct officers as to the civil rights of defendants; in failing to instruct and train officers on the rules and regulations of designated zones and designated activity in Times Square Area; in the malicious prosecution of plaintiff without probable cause; in detaining plaintiff without probable cause; in harassing plaintiff; in following a custom and practice that discriminates and targets Times Square street performers such as plaintiff; in taking plaintiff's freedom away; in failing to protect plaintiff; in violating plaintiff's rights under the New York State Constitution, violating plaintiff's right under the U.S. Constitution and federal statutes including 42 USC 1985, 1983 and

1981 in that plaintiff was deprived of his rights, privileges and immunities afforded under the Federal Constitution and Federal Law; defendant THE CITY OF NEW YORK and defendant Police Officer Ali Hussain were negligent in failing to use such care in the performance of their duties as a police officer as a reasonably prudent police officer would have performed under similar circumstances including but not limited to failing to use ordinary care; failing to protect; failure to guard, failure to police; failure to serve the public; failure to supervise, failure to train, failure to manage, failure to instruct; in permitting the false detention, false arrest, false imprisonment and malicious prosecution of the plaintiff; in permitting a custom and practice that discriminates and targets Times Square street performers such as plaintiff; in promulgating a custom, practice and policy that discriminates and targets Times Square street performers; in harassing the plaintiff; in having a custom and practice of discriminating and retaliating against plaintiff for making prior formal complaints against police for prior similar conduct failing to train its officers; and in failing to avoid the occurrence although there was an opportunity to do so.

28. That the defendant Police Officer Ali Hussain, failed to protect, and falsely detained plaintiff without probable cause or reason, while acting as an officer, agent, employee and/or

servant of the defendant THE CITY OF NEW YORK, and otherwise while acting on behalf of the defendant THE CITY OF NEW YORK.

29. That as a result of the above actions of the defendants, plaintiff suffered severe mental anguish, psychological trauma, physical harm, loss of freedom, false arrest, false charges, false imprisonment, stop and frisk, humiliation, ridicule, harm to reputation, psychological trauma, and disability from activities, malicious prosecution, retaliation, intentional infliction of emotional distress, harassment, embarrassment, emotional distress, anxiety, depression, fear of police, and loss of quality of life; all to his damage in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against the defendants in an amount which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction, together with punitive damages and the costs and disbursements of this action.

Dated: December 6, 2023

DAVID HOROWITZ, P.C.

By: Joanna Plonska

Joanna Plonska
171 Madison Avenue
New York, New York 10016
(212) 684-3630

ATTORNEY'S VERIFICATION

JOANNA PLONSKA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am an attorney at DAVID HOROWITZ, P.C., attorneys of record for Plaintiff(s) **JOSE ESCALONA-MARTINEZ**. I have read the annexed **SUMMONS AND COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because my Plaintiff(s) is/are not presently in the county wherein I maintain my offices in Richmond County.

Dated: New York, New York
December 6, 2023

Joanna Plonska
JOANNA PLONSKA

Index No.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

JOSE ESCALONA-MARTINEZ,

Plaintiff,

-against-

**THE CITY OF NEW YORK, and NYC POLICE
OFFICER ALI HUSSAIN,**

Defendants.

SUMMONS AND VERIFIED COMPLAINT

DAVID HOROWITZ, P.C.

Attorneys for Plaintiff

171 Madison Avenue, Suite 1300

New York, New York 10016

(212) 684-3630

Pursuant to 22 NYCRR 130 1.1., the undersigned, an attorney admitted to practice in the courts of the State of New York, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: December 6, 2023

Joanna Plonska
JOANNA PLONSKA, ESQ.
